

District: Chattogram

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Sardar Md. Rashed Jahangir

Civil Revision No. 3410 of 2024

In the matter of :

Md. Yeasin

... Petitioner

-Versus-

Ahmed Elahi and others

...Opposite-parties

Mr. Md. Mubarak Hossain, Advocate

...For the petitioner

Mr. Sankar Prasad Dey, Advocate with

Mr. Mohammad Ali, Advocate

...For the opposite-party No. 1

Heard on: 06.11.2024 and 13.11.2024

Judgment on: 14.11.2024

Rule was issued on leave calling upon the opposite-party No. 1 to show cause as to why the judgment and order dated 18.04.2024 passed by the Additional District Judge, Ninth Court, Chattogram in Civil Revision No. 316 of 2022 affirming the judgment and order dated 22.06.2022 passed by the Senior Assistant Judge, Fatikchari, Chattogram in Other Class Suit No.96 of 2021 rejecting the application filed on behalf of defendant Nos. 6-8 under Order VII, rule 11 of the Code of Civil Procedure

should not be set aside and/or such other or further order or orders as to this Court may seem fit and proper.

The present opposite party No. 1 as plaintiff filed Other Class Suit No. 96 of 2021 for declaration that the plaintiff is the legal Mutwalli of Langta Fakir Dargah Jame Masjid Waqf Estate and for further declaration that the letter bearing Memo No. 16.02.0000.033.31.000.04/477/ (3) dated 25.10.2020 sent by the defendant Nos. 1 and 2 asking for a proposal to constitute a committee regarding the Waqf Estate in question is illegal, void, collusive, inoperative and also for a declaration that the receiving of subscription by the office of the defendant No.1 from defendant No. 6 in respect of the Waqf Estate in question is illegal, void, collusive, inoperative.

Defendant Nos. 6-8 entered appearance and thereafter filed an application on 13.10.2021 under Order VII, rule 11 read with section 151 of the Code of Civil Procedure for rejection of plaint contending, *inter-alia* that the Civil Court has no jurisdiction to try the present suit, since the suit is barred under the provision of section 32 of the Waqfs Ordinance, 1962.

The plaintiff filed written objection against the application filed under Order VII, rule 11 of the Code of Civil Procedure contending, *inter-alia* that under section 9 of the Code of Civil Procedure the Civil Court has the authority to try all suits of civil

nature relating to enforcement of civil right and obligation. It was further contended that in filing the suit no provision of the Waqfs Ordinance, 1962 has been violated. The plaintiff has been appointed as mutawalli and he has certain rights stipulated under the Waqfs Ordinance, 1962 as well as under the laws of the country. He has a legal status and characteristic under the law and thus, possesses the right to sue for enforcement of his legal right and as such the application filed under Order VII, rule 11 of the Code of Civil Procedure on behalf of the defendant Nos. 6-8 is liable to be rejected.

Learned Senior Assistant Judge, Fatikchari, Chattogram after hearing the parties by his order dated 22.06.2022 rejected the application, against which the heirs of defendant No. 6 filed Civil Revision No. 316 of 2022 before the District Judge, Chattogram. On transfer the said revision was heard by the Additional District Judge, Ninth Court, Chattogram and by his judgment and order dated 18.04.2024 learned Additional District Judge rejected the revision affirming the order dated 22.06.2022 passed by the Senior Assistant Judge, Fatikchari, Chattogram in Other Class Suit No. 96 of 2021.

On being aggrieved by and dissatisfied with the judgment and order dated 18.04.2024, one of the heirs of deceased-

defendant No. 6 filed this revisional application and obtained the Rule.

Mr. Md. Mobarak Hossain, learned Advocate for the petitioner submits that the plaintiff stated in paragraph No. 3 of his plaint that, "পরবর্তীতে দেখা যায়, ৬নং বিবাদী হতে ওয়াকফ ভবন এর আদায়কারী কর্তৃক বিগত ৩০/০৯/২০২০ ইং তারিখ চাঁদা গ্রহন করিয়াছেন। ৬নং বিবাদী হতে চাঁদা গ্রহনের বা চাঁদা দিবার জন্য কোন চিঠি প্রেরনের আইনত: কোন সুযোগ নাই। " and also stated that, "তাহাছাড়া ৬নং বিবাদী কোন দায়িত্বপ্রাপ্ত কর্মকর্তা নহে। যেখানে একজন বৈধ মোতাওয়াল্লী রহিয়াছে সেখানে অন্য ব্যক্তি হতে চাঁদা গ্রহন বা তাহাকে কোন চিঠি প্রেরন অকর্মণ্য, অবৈধ, যোগসাজসী। উক্তরূপ কার্যক্রম করার কোন এখতিয়ার বা অধিকার ১-৩ নং বিবাদীর নাই।" and the prayer was that, "১। বাদী আহমদ এলাহী, লেংটা ফকির দরগাহ জামে মসজিদ ওয়াকফ এস্টেট এর বৈধ মোতাওয়াল্লী মর্মে ঘোষনার ডিক্রি দানের বিহীন মর্জি হয়।" by which the plaintiff claimed that he has been removed illegally and as per section 32(1) of the Waqfs Ordinance, 1962, the Administrator may, on his own motion or on an application of any beneficiary remove a mutawalli and as per section 32(2) of the Ordinance, A Mutawalli aggrieved by an order under sub-section (1) may, within three months from the date of communication of such order, appeal to the District Judge against such order of removal, but the Courts below without considering the same rejected the application for rejection of plaint, resulting in an error in the decision occasioning failure of justice.

Mr. Hossain next submits that the plaintiff filed this suit with a prayer that, "১/২ নং বিবাদী কর্তৃক বিগত ২৫/১০/২০২০ ইং তারিখে স্মারক নং- ১৬.০২.০০০০.০৩৩.৩১.০০০.০৪/৪৭৭/(৩) মূলে কমিটির প্রস্তাব প্রেরণ অবৈধ, অকার্যকর, বেআইনী, যোগসাজসী মর্মে ঘোষণার ডিক্রি দানের বিহীন মর্জি হয়।" by which the plaintiff has challenged the order of the defendant Nos. 1 and 2 who are the Waqfs Administrator but the Courts below committed error of law in rejecting the application for rejection of plaint with the finding that the plaintiff did not challenge any order of Waqf Administrator in misreading the plaint and prayer of the plaintiff, which resulting in an error in the decision occasioning failure of justice.

On the other hand, Mr. Sankar Prasad Dey, learned Advocate for the opposite party No. 1 submits that the application filed on behalf of the defendant Nos. 6-8 under Order VII, rule 11 of the Code of Civil Procedure is a misconceived one, because, the suit is very much disclosed the cause of action and is not barred by law and there is no allegation on behalf of defendant Nos. 6-8 that the suit or plaint is undervalued.

He next submits that under sub section (2) of section 32 of the Waqfs Ordinance, 1962 provided for filing an appeal against the order of removal of mutawalli, evidently, the plaintiff has not been removed and under the suit in hand the plaintiff did not sought for any such relief against removal, thus, the restriction by

implication under the stipulation of section 32 of the Waqf Ordinance, 1962 has no application against the present suit.

He further submits that it is the settled principle that a suit of civil nature would lie in the Civil Court, unless specifically or by necessary implication the suit is barred. He continues to submit that the defendant Nos. 6-8 could not make any case that the present suit specifically or by necessary implication is barred.

He finally submits that both the Courts below concurrently found that the defendants' application is not entertainable and the order of the Additional District Judge, Chattogram is a self explanatory one and as such, there is hardly any scope to interfere into the judgment and order of the lower Courts below.

Heard learned Advocates of both the parties, perused the revisional application together with the annexures appended thereto and having gone through the relevant provisions of law.

It appears that the present opposite party No. 1 as plaintiff filed Other Class Suit No. 96 of 2021 for declaration that the plaintiff is the legal Mutawalli of concerned Waqf Estate and for further declaration that the letter bearing Memo No. 16.02.0000.033.31.000.04/477/ (3) dated 25.10.2020 sent by the defendant Nos. 1 and 2 asking for a proposal to constitute a committee regarding the concern Waqf Estate is illegal, void, collusive, inoperative and for a further declaration that receiving

of subscription by the office of the defendant No. 1 from defendant No. 6 in respect of the Waqf Estate in question is illegal, void, collusive, inoperative. In the said suit the defendant Nos. 6-8 made appearance and filed an application under Order VII, rule 11 read with section 151 of the Code Civil Procedure contending, *inter-alia* that the suit is barred under section 32 of the Waqfs Ordinance, 1962. For better understanding let the provisions of section 32 of the Waqfs Ordinance, 1962 be examined, which is reproduced hereinafter:

“32- (1) Notwithstanding anything contained else-where in this Ordinance or in any other law for the time being in force, the Administrator may, on his own motion or an application of any [beneficiary], remove a mutawalli-

- (i) for breach of trust, mismanagement, mal-feasance or misappropriation; or*
- (ii) for any act of the mutawalli causing loss of waqf property or affecting the proper administration, control of preservation of the waqf ; or*
- (iii) if the mutawalli has been convicted more than once under section 61 of this Ordinance; or*
- (iv) if the existing mutawalli is found unsuitable, incompetent, negligent or otherwise undesirable:*

Provided that no such order for removal of a mutawalli shall be made without giving him an opportunity of being heard.

(2) A mutawalli aggrieved by an order under sub-section (1) may within three months from the date of communication of such order, appeal to the District Judge against such order removal,

Provided that no appeal shall lie against an order under sub-section (1) unless the mutawalli has made over-charge of the waqf to the new mutawalli appointed under sub-section (4).

- (3).....*
- (4).....*
- (5).....*
- (6).....”*

The provision of sub-section (1) of section 32 of the Ordinance provides that the Administrator may of his own motion or upon an application of any beneficiary can remove a mutawalli. Sub-section(2) of the said section also provides that “mutawalli may filed an appeal to the District Judge of concerned jurisdiction against the order of removal. Meaning thereby, the removed mutawalli is to file an appeal under the provision of section 32(2) of the Ordinance.

In the present suit, pending before the Senior Assistant Judge, Fatikchari, Chattogram no relief has been sought for against any specific order of the Administrator of waqfs. Thus, the present suit is also not barred under section 102 of the Ordinance.

Generally, all suits of civil nature lie in the Civil Court, unless specifically or by necessary implication is barred, and when any specific provision of any particular statute contemplating to exclude such jurisdiction is therefore an exception to the general rules as stipulated under section 9 of the Code of Civil Procedure, which provides that the Court shall have jurisdiction to try all suits of civil nature. The Courts of law cannot naturally presumed the jurisdiction has been ousted, the construction is in favour of retention or having jurisdiction of the civil court. The onus heavily lies upon the person who asserts the civil Court's jurisdiction has been ousted.

In the case in hand, the contention of defendant-petitioners seems to bear no merit, because, the plaintiff has not been removed and or the plaintiff does not seek any relief against such order of removal, which is an appealable order under section 32(2) of the Waqfs Ordinance, 1962. The defendants-petitioners also failed to show that removal order has been challenged under the present suit, and for that reason the implied ouster clause of section 32 of the Waqfs Ordinance, 1962 shall come into play. It

further appears that the present suit as has been disclosed from the averments of the plaint, is a suit to enforce the right to discharge the functions attached to an office of mutawalli. Thus, it is a suit of civil nature and the dispute as has been disclosed has the characteristic of affecting the right of the plaintiff-mutawalli, which is undoubtedly is a civil suit of civil nature indeed.

In this regard, we may rely upon the judgment passed in the case of Dildar Ahmed Chowdhury Vs. Farroque Ahmed Chowdhury reported in 27 DLR(AD) 138.

In the premise above, I do not find any reason to interfere with the judgment and order of both the Courts below.

Accordingly, the Rule is discharged without any order as to cost.

The ad-interim order of stay granted at the time of issuance of the Rule is hereby recalled.

Communicate the judgment and order at once.